



DEPARTMENT OF PUBLIC SAFETY

Colorado Bureau of Investigation

BLUE ALERT PROGRAM

8 CCR 1507-27

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Authority to adopt rules and regulations

The Colorado Department of Public Safety executive director is mandated to promulgate rules and regulations regarding the Blue Alert Program pursuant to section 24-33.5-416.5, C.R.S.

Definitions

The definitions provided in section 24-33.5-416.5(2) C.R.S. shall apply to these rules and regulations. The following definitions shall also apply.

"Notification Period" - the alert will be active until the suspect(s) is apprehended or the requesting agency provides information that the alert is no longer necessary and should be canceled.

"Peace Officer" – a person who meets all standards imposed by Colorado law on a peace officer is a peace officer, and, notwithstanding any other provision of law. A peace officer may be certified by the peace officers standards and training board pursuant to part 3 of article 31 of title 24, C.R.S., and, at a minimum, has the authority to enforce all laws of the state of Colorado while acting within the scope of his or her authority and in the performance of his or her duties. A federal law enforcement officer who is authorized to carry a firearm and make arrests for violations of federal law while acting within the scope of his or her authority and in the performance of his or her duties.

"Blue Alert Broadcast" – a public broadcast notification containing information regarding the imminent danger posed by a suspect who has killed or seriously injured a peace officer who is acting within the scope of his or her authority and in the performance of his or her duties, including circumstances, mode of transportation and/or direction of travel, and any additional information pertaining to the investigation that may lead to the apprehension of the suspect or suspects.

"Life Threatening Injury" – an injury involving a substantial risk of death; loss or substantial impairment of the function of a bodily member, organ, or mental faculty that is likely to be permanent; or an obvious disfigurement that is likely to be permanent.

Applicability

These rules and regulations shall apply to the Colorado Bureau of Investigation (CBI) and law enforcement statewide.

Rules / Regulations / Procedures

CBI-BAP1

- A) A local law enforcement agency, operating under their individual policy and procedures, involving an investigation, and upon verifying that a peace officer has been killed or has received a life-threatening injury and the suspect or suspects have fled the scene of the offense may notify the

CBI at the main number and request that the information be conveyed to the bureau for a blue alert broadcast.

CBI-BAP2

- A) The CBI will verify the accuracy of the information based on personal contact with a representative from the law enforcement agency. The verification of information provided by the law enforcement agency will include but is not limited to: 1) Confirming the identity of the law enforcement agency and the reporting law enforcement official. 2) All appropriate information that the reporting law enforcement agency has that may assist in the apprehension of the suspect or suspects. 3) Verify that the information being reported meets the definition of "peace officer" and "life threatening injury" as defined in this rule. The CBI will then forward the information on to participating radio stations, television stations, and other media outlets in Colorado.

CBI-BAP3

The alert information may contain but is not limited to:

- A) The physical description of the suspect(s) and identification information to include last known location.
- B) Information involving the suspect(s) mode of transportation.
- C) Brief description of events leading to the offense.
- D) A statement instructing anyone with information related to the killing or injuring of the peace officer to contact his or her local law enforcement agency;
- E) A warning that the suspect or suspects are dangerous and that member of the public should not attempt to apprehend the suspect or suspects themselves.

CBI-BAP4

- A) The alert may be rebroadcast to the public as often as possible, but it is recommended to rebroadcast every 15 minutes the first 2 hours, then every 30 minutes. The update of information may be at the request of state or local law enforcement and as additional information becomes available or as investigation circumstances change. This information is provided to the CBI and forwarded to the broadcaster.
- B) The cancellation of the broadcast shall be the responsibility of the CBI. The requesting law enforcement agency must contact the CBI designee to deactivate the broadcast once the suspect or suspects have been apprehended or at the end of the determined notification period.
- C) The Bureau will notify the participating radio stations, television stations, and other media outlets in Colorado that the suspect or suspects have been apprehended or at the end of the determined notification period, whichever comes first.
- D) A list of broadcasters receiving the alert will be maintained by the CBI.

Editor's Notes

History

Entire rule eff. 09/30/2011.